

Court No. - 39

Case :- WRIT - C No. - 22710 of 2015

Petitioner :- Executive Engineer Electricity Urban Distribution Division

Respondent :- Himanshu Mishra & Another

Counsel for Petitioner :- Mahboob Ahmad

Hon'ble Dilip Gupta,J.

Hon'ble Vinod Kumar Misra,J.

This petition seeks the quashing of the order dated 10 September 2014 passed by the District Consumer Grievance Redressal Forum, Gorakhpur.

A complaint was filed before the Consumer Forum against the order dated 30 December 2009 by which the power connection of respondent No.1 was disconnected for non-payment of the amount under the bills raised by the Executive Engineer in the Electricity Urban Distribution Division-III, at Gorakhpur.

It is submitted by learned counsel for the petitioner that the Consumer Forum has no jurisdiction to entertain a complaint as the U.P. Electricity Supply Code, 2005 is a complete Code for redressal of the grievance.

The matter requires consideration.

Issue notice to respondent No.1 by registered post. Steps may be taken within a week. The respondents may file a counter affidavit in four weeks. Rejoinder affidavit, if any, may be filed within two weeks thereafter.

List this petition for admission/hearing in the week commencing 6 July 2015.

Till the next date of listing, the operation of the order dated 10 September 2014 passed by the Consumer Forum shall remain stayed.

Order Date :- 22.4.2015/NSC

(Vinod Kumar Misra, J.)

(Dilip Gupta, J.)

Court No. - 32

Case :- WRIT - C No. - 22710 of 2015

Petitioner :- Executive Engineer Electricity Urban Distribution Division

Respondent :- Himanshu Mishra & Another

Counsel for Petitioner :- Mahboob Ahmad

Counsel for Respondent :- S.C.

Hon'ble Rakesh Tiwari,J.

Hon'ble Mukhtar Ahmad,J.

Steps have been taken. Office to proceed in the matter. List after two weeks.
The stay order is extended till next date of listing.

Order Date :- 7.8.2015

CPP/-

Court No. - 32

Case :- WRIT - C No. - 22710 of 2015

Petitioner :- Executive Engineer Electricity Urban Distribution Division

Respondent :- Himanshu Mishra & Another

Counsel for Petitioner :- Mahboob Ahmad

Counsel for Respondent :- S.C., Hari Pratap Gupta

Hon'ble Rakesh Tiwari, J.

Hon'ble Mukhtar Ahmad, J.

As prayed, list after two weeks. The interim order is extended till next date of listing.

Order Date :- 8.10.2015

CPP/-

Court No. - 39

Case :- WRIT - C No. - 22710 of 2015

Petitioner :- Executive Engineer Electricity Urban Distribution Division

Respondent :- Himanshu Mishra & Another

Counsel for Petitioner :- Mahboob Ahmad

Counsel for Respondent :- S.C., Hari Pratap Gupta

Hon'ble Dilip Gupta, J.

Hon'ble Mukhtar Ahmad, J.

List this petition in the week commencing 23 November 2015. Interim order, granted earlier, shall continue till the next date of listing.

Order Date :- 26.10.2015

GS

(Dilip Gupta, J.)

(Mukhtar Ahmad, J.)

Court No. - 39

Case :- WRIT - C No. - 22710 of 2015

Petitioner :- Executive Engineer Electricity Urban Distribution Division

Respondent :- Himanshu Mishra & Another

Counsel for Petitioner :- Mahboob Ahmad

Counsel for Respondent :- S.C., Hari Pratap Gupta

Hon'ble Dilip Gupta,J.

Hon'ble Mukhtar Ahmad,J.

List in the first week of January 2016.

Interim order, granted earlier, shall continue till the next date of listing.

Order Date :- 23.11.2015

Akram

(Dilip Gupta,J.)

(Mukhtar Ahmad,J.)

Court No. - 39

Case :- WRIT - C No. - 22710 of 2015

Petitioner :- Executive Engineer Electricity Urban Distribution Division

Respondent :- Himanshu Mishra & Another

Counsel for Petitioner :- Mahboob Ahmad

Counsel for Respondent :- S.C., Hari Pratap Gupta

Hon'ble Dilip Gupta, J.

Hon'ble Mukhtar Ahmad, J.

List in 3rd week of February 2016.

Interim order, granted earlier, shall continue till the next date of listing.

Order Date :- 4.1.2016

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(Mukhtar Ahmad, J.) (Dilip Gupta, J.)

Court No. - 39

Case :- WRIT - C No. - 22710 of 2015

Petitioner :- Executive Engineer Electricity Urban Distribution Division

Respondent :- Himanshu Mishra & Another

Counsel for Petitioner :- Mahboob Ahmad

Counsel for Respondent :- S.C., Hari Pratap Gupta

Hon'ble Dilip Gupta, J.

Hon'ble Mukhtar Ahmad, J.

List this petition in the third week of April 2016. Interim order shall continue till the next date of listing.

Order Date :- 9.3.2016

NSC

(Dilip Gupta, J.)

(Mukhtar Ahmad, J.)

Court No. - 34

Case :- WRIT - C No. - 22710 of 2015

Petitioner :- Executive Engineer Electricity Urban Distribution Division

Respondent :- Himanshu Mishra & Another

Counsel for Petitioner :- Mahboob Ahmad, Kapil Dev Singh
Rathore, Mangla Prasad Rai

Counsel for Respondent :- S.C., Hari Pratap Gupta

Hon'ble Sudhir Agarwal, J.

Hon'ble Ajit Kumar, J.

1. Heard Sri Kapil Dev Singh Rathore, learned counsel for petitioner and learned Standing Counsel for respondents.

2. This writ petition is thoroughly misconceived and ill-advised.

3. Order passed by District Consumer Forum dated 10th September, 2014 in complaint case no. 131 of 2011 has been challenged on the ground that Consumers/respondents would have raised their grievance before Consumer Grievance Redressal Forum constituted under U.P. Electricity Supply Code, 2005 read with Consumer Grievance Redressal Forum Regulation, but could not dispute that remedy before District Consumer Forum is also one of the remedy under Consumer Protection Act, 1986. There is no provision that any other remedy, available to consumer whereagainst exercise of right of election to avail one of the available remedies cannot be exercised by such consumer. In the present case, consumer has chosen to raise his grievance before District Consumer Forum. In the circumstances, once District Consumer Forum has passed order and it is appealable. we fail to understand, why petitioner may not avail remedy of appeal instead of approaching this Court under Article 226 of Constitution of India.

4. Be that as it may, since we find that very question raised by petitioner that District Consumer Forum has no jurisdiction, therefore, there is no occasion to avail alternative remedy of appeal in law, has no foundation and basis we do not find any merit and substance in arguments advanced in writ petition.

5. Writ petition is accordingly dismissed.

Order Date :- 6.11.2017

Sanjeev